



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

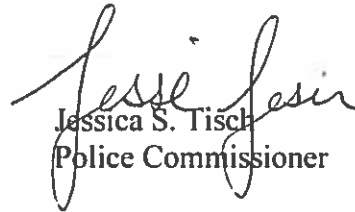
Re: Disciplinary Case No. 2024-31908 / PODS Case No. C-030410 regarding Police Officer Carlos Arrecis

Date: November 5, 2025

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Police Officer Arrecis entered a location without sufficient legal authority and wrongfully used force against an individual. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, Police Officer Arrecis will receive Training, as negotiated by CCRB.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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March 21, 2025

The Honorable Jessica S. Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Carlos Arrecis (Tax Reg #963380, DADS #2024-31908)

Commissioner Tisch:

A negotiated settlement of a dismissal of the charges along with a penalty of Training was agreed upon and signed by all parties on January 22, 2025. Assistant Deputy Commissioner Anne Stone endorsed the negotiated settlement on March 11, 2025.

On May 28, 2023, PO Arrecis and his partner respond to a 911 at 111 Wadsworth Avenue in Manhattan. When they arrived at the location, they met the caller who is a 17-year-old who told them she lives there, her mother had locked her out without a key. The officers went to the apartment and rang the bell. The 17-year-old's mother, Yokasta Santana, opened the door and the 17-year-old entered the apartment. The officers then argued with Ms. Santana about why she needed to give her daughter a key. BWC then shows that PO Arrecis enters the apartment without asking for consent. After some more discussion, the BWC then shows PO Arrecis grab Ms. Santana's arm, push her up against the wall and handcuff her. It was improper for PO Arrecis to enter the home as there was no consent, and there were no exigent circumstances or any facts to suggest that the daughter was in danger. Furthermore, it was unreasonable for PO Arrecis to push Ms. Santana up against the wall.

For the charge of an unlawful entry involving a substantial presence, the disciplinary matrix lists a mitigated penalty of training, a presumptive penalty of the forfeiture of ten (10) vacation days, and an aggravated penalty of the forfeiture of twenty (20) vacation days. For the charge of an unlawful force with no injury, the disciplinary matrix lists a mitigated penalty of the forfeiture of five (5) vacation days, a presumptive penalty of the forfeiture of ten (10) vacation days, and an aggravated penalty of Termination.

The negotiated settlement deviates from NYPD disciplinary guidelines as to unlawful force with no injury for the following reasons:

Officer Arrecis' eight years of service and the fact that he was rated as 10 out of 10, well above standards, in his most recent evaluation. It is also based on an acknowledgement of the volatile nature of the situation that Officer Arrecis faced in this case.

Respectfully submitted,

Brian Arthur

Brian Arthur. Esq.
Deputy Chief Prosecutor
Civilian Complaint Review Board